

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ERNESTO ORTIZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
WASHINGTON MAOSQUERA, Shield No. 2369,
DETECTIVE ADE AJASA, DETECTIVE ALBERT
JACKSON, LIEUTENANT DAVID STEIN, SERGEANT
JEAN DESIR, DETECTIVE DOUGLAS CORSO and
POLICE OFFICERS JOHN DOES # 1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 13, 2015

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Washington Mosquera, Shield No. 2369
Detective Ade Ajasa
Detective Albert Jackson
Lieutenant David Stein
Sergeant Jean Desir
Detective Douglas Corso

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ERNESTO ORTIZ, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 29, 2012, at approximately 6:00 a.m., plaintiff Ernesto Ortiz was lawfully sleeping at his friend's apartment located at 3003 Clarendon Road, Apt. 3F, Brooklyn, New York, when the individually named defendant police officers unlawfully entered the apartment with their guns drawn and subjected plaintiff to an unlawful, stop, question, frisk, and search, an unlawful seizure and detention, false arrest and false imprisonment by the individually named defendant New York City Police Officers. Thereafter, the defendant police officers maliciously prosecuted plaintiff, denied plaintiff a right to a fair trial, and committed the tort of abuse of process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. All criminal charges brought against plaintiff stemming from the March 29, 2012 arrest were dismissed in their entirety on July 30, 2013. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, used excessive force against, maliciously prosecuted, abused process, and denied plaintiff a

right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York

PARTIES

2. Plaintiff ERNESTO ORTIZ is a resident of the State of New York.
3. DETECTIVE ADE AJASA, is and was at all times relevant herein, an officer, detective, employee, and agent of the New York City Police Department.
4. DETECTIVE ADE AJASA, was at all times relevant herein assigned to the Narcotics Borough Brooklyn South command.
5. DETECTIVE ADE AJASA, is being sued in his individual and official capacities.
6. DETECTIVE ALBERT JACKSON, is and was at all times relevant herein, an officer, detective, employee, and agent of the New York City Police Department.
7. DETECTIVE ALBERT JACKSON, was at all times relevant herein assigned to the Narcotics Borough Brooklyn South command.
8. DETECTIVE ALBERT JACKSON,, is being sued in his individual and official capacities.
9. DETECTIVE DOUGLAS CORSO, is and was at all times relevant herein, an officer, Detective, employee, and agent of the New York City Police Department.
10. DETECTIVE DOUGLAS CORSO, was at all times relevant herein assigned to the Narcotics Borough Brooklyn South command.
11. DETECTIVE DOUGLAS CORSO, is being sued in his individual and official capacities.
12. SERGEANT JEAN DESIR, is and was at all times relevant herein, an officer, Sergeant, employee, and agent of the New York City Police Department.
13. SERGEANT JEAN DESIR, was at all times relevant herein assigned to the Narcotics Borough Brooklyn South command.
14. SERGEANT JEAN DESIR, is being sued in his individual and official capacities
15. LIEUTENANT DAVID STEIN, is and was at all times relevant herein, an officer, Lieutenant, employee, and agent of the New York City Police Department.

16. LIEUTENANT DAVID STEIN, was at all times relevant herein assigned to the Narcotics Borough Brooklyn South command.

17. LIEUTENANT DAVID STEIN, is being sued in his individual and official capacities.

18. POLICE OFFICER WASHINGTON MOSQUERA, Shield No. 2369, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. POLICE OFFICER WASHINGTON MOSQUERA, Shield No. 2369, was at all times relevant herein assigned to the Narcotics Borough Brooklyn South command.

20. POLICE OFFICER WASHINGTON MOSQUERA, Shield No. 2369, is being sued in his individual and official capacities.

21. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. New York City Police Officers John Does #1-10, were at all times relevant herein assigned to the Narcotics Borough Brooklyn South command

23. Police Officers John Does #1-10 are being sued in their individual and official capacities.

24. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

25. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

26. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

27. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

28. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

29. On March 29, 2012, at approximately 6:00 a.m., plaintiff, an African American male, was lawfully sleeping at his friend's apartment located at 3003 Claredon Road, Apt. 3F, Brooklyn, New York, when the individually named defendant police officers unlawfully entered the apartment with their guns drawn and pointed at plaintiff, and screamed profanities toward plaintiff.

30. Without cause or legal justification, Defendant Police Officer Washington Mosquera fired his gun at plaintiff while plaintiff was laying in bed, almost hitting plaintiff with a bullet, causing a bullet to fire through the floor of the apartment where plaintiff was sleeping and into the apartment of another individual.

31. The individually named defendant police officers then proceeded to assault batter, punch, kick, and use excessive force against plaintiff without provocation or legal justification, causing injuries to plaintiff's entire body.

32. The individually named defendant police officers unlawfully searched plaintiff's person and unlawfully searched the apartment where plaintiff was sleeping and at no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiff's person or from a location within plaintiff's possession, custody or control.

33. At no time did the defendant police officers observe plaintiff commit a crime or break a law, and the defendant police officers did not have a legal basis or probable cause to arrest plaintiff.

34. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and arrested him without legal justification or probable cause.

35. Plaintiff was transported to a police precinct where an unlawful search of plaintiff's person was conducted again, plaintiff was unlawfully fingerprinted and photographed, and unlawfully detained in a holding cell until approximately 6:35 p.m. on March 29, 2012 when plaintiff was transported to Brooklyn Central Booking whereat his unlawful detention continued.

36. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime.

37. At no time did plaintiff resist arrest in any manner.

38. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff, or from his custody, possession or control.

39. The individually named defendant police officers, including but not limited to defendant Police Officer Washington Mosquera, falsely communicated to the Brooklyn District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal basis to allege plaintiff committed a crime.

40. Upon information and belief, defendant Police Officer Washington Mosquera communicated false information to the Brooklyn District Attorney's Office about plaintiff's alleged criminal activity in order to justify discharging and firing his weapon in the directing of where plaintiff was located in the apartment.

41. Plaintiff was unlawfully detained at Brooklyn Central Booking in filthy and crowded holding cells for many hours, with individuals accused of committing serious violent crimes.

42. Plaintiff was arraigned before a judge in Brooklyn Criminal Court on March 30, 2012 at which time he was falsely charged with the crimes of attempted assault, menacing, and harassment because the defendants did not find any illegal drugs, weapons, or contraband during their search of the apartment and felt pressure to charge plaintiff with a crime anyway in order to justify the use of force against plaintiff and to justify a police officer firing his weapon during the course of the search.

43. Plaintiff was forced to appear in Kings County Criminal Court on approximately twenty seven (27) additional dates to address the false criminal charges filed against him by defendants.

44. On July 30, 2013 all criminal charges stemming from plaintiff's March 29, 2012 arrest were dismissed and sealed and the criminal prosecution terminated in plaintiff's favor.

45. Some of the individually named police officer defendants did not physically touch plaintiff throughout the search of the apartment, plaintiff's arrest, detention and prosecution, but they observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law by their fellow police officers and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and malicious prosecution of plaintiff by their police officer colleagues.

46. The unlawful search, false arrest, false imprisonment, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical,

psychological, economic and emotional trauma, as well as damage to plaintiff's professional reputation.

47. Additionally, there is a policy, practice or custom wherein the New York City Police Department, wherein New York City Police Officers unlawfully arrest individuals and charge them with crimes they did not commit in order to justify the amount of force the officers used against the individuals during the course of a search, seizure and arrest.

48. This policy and practice directly caused the unconstitutional arrest of plaintiff, as the officers did not discover any illegal drugs, weapons or contraband within plaintiff's possession, custody or control, but they needed to justify the force used against plaintiff, the fact that an officer's weapon was discharged in the direction of plaintiff, and the injuries caused to plaintiff's body by the police officers.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth Amendment and Fourteenth Amendment Rights

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, unlawfully seized, unlawfully searched, falsely arrested and falsely imprisoned, maliciously prosecuted, denied plaintiff due process and a right to a fair trial and subjected to the officers' abuse of process, all without probable cause or any legal justification in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States. Thereafter, the individually

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question and Frisk

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

66. The conduct of defendants in stopping, questioning and frisking, and plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

72. Defendants commenced and continued a criminal proceeding against plaintiffs.

73. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which he was prosecuted.

74. Upon information and belief, the prosecution and criminal proceedings terminated favorably to plaintiffs on or about July 30, 2013.

75. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 76 with the same force and effect as if fully set forth herein.

78. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

79. Defendants filled out false and misleading police reports, and forwarded them to prosecutors in the Kings County District Attorney's Office.

80. Defendants signed false and misleading supporting depositions in Kings County Criminal Court and forwarded them to prosecutors in the Kings County District Attorney's Office.

81. In withholding/creating false evidence against plaintiff Ernesto Ortiz, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

82. As a result of the foregoing, plaintiff Ernesto Ortiz, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 83 with the same force and effect as if fully set forth herein.

85. Defendants issued legal process to plaintiff Ernesto Ortiz when they placed him under arrest, and when defendant Police Officer Washington J. Mosquera entered false information onto and signed the criminal court complaint containing false information and filed the fraudulent document with the Kings County Criminal Court in support of the criminal court complaint that charged plaintiff with crimes he did not commit.

86. Defendants arrested plaintiff Ernesto Ortiz in order to obtain a collateral objective outside the legitimate ends of the legal process, namely to justify the force used by them against plaintiff and the discharge and firing of defendant Police Officer Washington Mosquera's weapon in the direction of plaintiff.

87. Defendants acted with intent to do harm to plaintiff Ernesto Ortiz without excuse or justification.

88. As a result of the foregoing, plaintiff Ernesto Ortiz sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

95. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The use of excessive force by defendants hitting, kicking, and punching plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

99. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

102. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

103. Additionally, the aforementioned customs, policies, usages, procedures and rules of defendant City of New York and the New York City Police Department, included but were not limited to, unlawfully arresting individuals, without probable cause or legal justification for allegedly possessing a controlled substance, without first identifying the substance at issue, verifying it is a controlled substance, and without even having any factual or objective basis to suspect which controlled substance the officer believes the arrestee possesses.

104. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

105. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

106. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

107. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched.

108. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

109. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff ERNESTO ORTIZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 13, 2015

By: _____

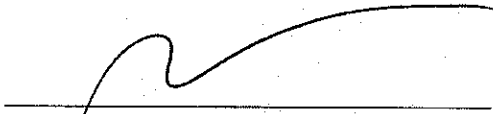
STUART E. JACOBS
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New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 13, 2015



STUART E. JACOBS